

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS

HANNA D. DAVIS,	)	
	)	
Plaintiff,	)	
	)	
v.	)	Case No.
	)	
SPENCER C. KELLEY AND	)	
VISION COMMUNICATIONS KS, INC.	)	
	)	
Defendants.	)	
_____	)	

COMPLAINT

COMES NOW Plaintiff, Hanna D. Davis by and through her attorneys of record, Arthur E. Rhodes and Dustin L. DeVaughn of DeVaughn James Injury Lawyers and asserts the following in support of the Petition against Defendants, Spencer C. Kelley and Vision Communications KS, Inc.:

1. Plaintiff, Hanna D. Davis is a resident and citizen of Moore, Cleveland County, Oklahoma.
2. Defendant, Spencer C. Kelley is a citizen of Sedgwick County, Kansas and may be served at Defendant's residence at 14201 W. Westport, Wichita, Kansas 67236.
3. Defendant, Vision Communications KS, Inc., is a for-profit corporation with its principal place of business within the State of Kansas. Defendant may be served through its resident agent, Jared D. Kelley, 1525 S. Washington St., Wichita, Kansas 67211.
4. This Court has jurisdiction over the persons and subject matter.

5. Venue is proper in the Wichita division of the Kansas District Court of the Federal District Court.
6. This action is brought pursuant to 28 U.S.C. Section 1332(a) on the basis of diversity of citizenship. The matter is in excess of the sum of Seventy-Five Thousand Dollars (\$75,000.00) exclusive of interest and costs.
7. At all times relevant herein, Defendant, Spencer C. Kelley was an employee or agent of Defendant, Vision Communications KS, Inc., and acting within the course and scope of his employment. Defendant, Vision Communications KS, Inc. is liable for the negligence of its employee or agent under the legal doctrines of vicarious liability and *respondeat superior*.
8. Upon information and belief, Defendant, Spencer C. Kelley was within the course and scope of his employment with Defendant, Vision Communications KS, Inc. when on or about January 27, 2020 Defendant, Spencer C. Kelley carelessly and negligently operated a motor vehicle causing a collision with Plaintiff.
9. This incident and all of the resulting personal injuries and other damages were a direct result of the negligence, omissions and fault of the Defendant, Vision Communications KS, Inc.'s and its employee, Defendant Spencer C. Kelley and or agent which includes, but is not limited to:
 - a. Inattentive operation of a motor vehicle;
 - b. Attempting to make an unsafe safe pass;
 - c. Failure to drive at a safe speed;
 - d. Failure to keep a proper lookout;
 - e. Failure to use ordinary care;

- f. Failure to give warning;
 - g. Failure to take evasive action; and
 - h. Careless driving.
10. As a result of the Defendants' negligence, Plaintiff sustained personal injuries. Plaintiff's damages include past medical expenses, future medical expenses, past and future economic damages and past and future non-economic damages including pain, suffering and mental anguish. Plaintiff's damages also include the damage to his vehicle and trailer as well as the loss of use of the vehicle and trailer.

WHEREFORE, Plaintiff requests judgment against Defendants for an amount in an amount in excess of SEVENTY-FIVE THOUSAND (\$75,000.00), together with the costs incurred herein and for such other and any further relief this Court deems fair, just and equitable.

Respectfully Submitted,

DeVaughn James Injury Lawyers

By: /s/ Arthur E. Rhodes

Arthur E. Rhodes, #17661

Dustin L. DeVaughn, #16559

DeVaughn James Injury Lawyers

3241 N. Toben

Wichita, KS 67226

Telephone: (316)977-9999

Facsimile: (316)425-0414

E-Mail: arhodes@devaughnjames.com

E-Mail: ddevaughn@devaughnjames.com

Attorneys for Plaintiff

DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

Plaintiff demands a pretrial conference and trial by a jury of eight (8) persons in this matter.

DESIGNATION FOR PLACE OF TRIAL

Plaintiff designates Wichita, Kansas as the place for trial of this matter.

DeVaughn James Injury Lawyers

By: /s/ Arthur E. Rhodes

Arthur E. Rhodes, #17661

Dustin L. DeVaughn, #16559

DeVaughn James Injury Lawyers

3241 N. Toben

Wichita, KS 67226

Telephone: (316)977-9999

Facsimile: (316)425-0414

E-Mail: arhodes@devaughnjames.com

E-Mail: ddevaughn@devaughnjames.com

Attorneys for Plaintiff